

forwarding station or at any place before the destination station and to recover the cost of such unloading and any charge for the detention of any wagon on this account.

### **Comment**

Section 73 provides for levy of punitive charges for overloading a wagon.

**Penal Provision.-** It is to be construed rigidly.

74. Passing of property in the goods covered by railway receipt.- The property in the consignment covered by a railway receipt shall to the consignee of the endorsee, as the case may be, on the delivery of such railway receipt to him and he shall have all the rights and liabilities of the consignor.

### **Comment**

Section 74 provides for passing of property in the consignment covered by a railway receipt.

**75. Section 74 not to affect right of stoppage in transit or claims for freight.- Nothing contained in Sec. 74 shall prejudice or affect-**

- (a) any right of the consignor for stoppage of goods in transit as an unpaid vendor (as defined under the Sale of Goods Act, 1930 (3) of 1930) on his written request to the railway administration;
- (b) any right of the railway to claim freight from the consignor; or
- (c) any liability of the consignee or the endorsee, referred to in that section by reason of his being such consignee or endorsee.

### **Comment**

Section 75 lays down the right of stoppage in transit by consignor as an unpaid vendor and right of railway administration for unpaid freight.

**76. Surrender of railway receipt.-** The railway administration shall deliver the consignment under a railway receipt on the surrender of such railway receipt

Provided that in case the railway receipt is not forthcoming, the consignment may be delivered to the person, entitled in the opinion of the railway administration to receive the goods, in such manner as may be prescribed.

### **Comment**

Section 76 provides delivery of the consignment on surrender of railway receipt.

**77. Power of railway administration to deliver goods or sale proceeds thereof in certain cases.-** Where no railway receipt is forthcoming and any consignment or the sale proceeds of any consignment are claimed by two or more persons, the railway administration may withhold delivery of such consignment or sale proceeds, as the case may be, and shall deliver such consignment or sale proceeds in such manner as may be prescribed.

### **Comment**

Section 77 provides for the manner in which delivery of consignment or sale proceeds may be made where two or more persons claim the same.

### **78. Power to measure, weigh , etc.**

Notwithstanding anything contained in the railway receipt, the railway administration may, before the delivery of the consignment, have the right to –

- (i) re-measure, re-weigh or re-classify any consignment;
- (ii) re-calculate the freight and other charges ; and
- (iii) correct any other error or collect any amount that may have been omitted to be charge.

### **Comment**

Section 78 gives right to railway administration to re-measure or re-classify any consignment and re-calculate the freight and other charges and to collect any amount that has been omitted.

### **79. Weighment of consignment on request of the consignee or endorsee :**

A railway administration may on the request made by the consignee or endorsee, allow weighment of the consignment subject to such conditions and on payment of such charges as may be prescribed and the demurrage charges if any ;

Provided that except in cases where a railway servant authorized in this behalf considers it necessary so to do, no weighment shall be allowed of goods booked at owner's risk rate or goods which are perishable and are likely to lose weight in transit;